

25STCV30022 25STCV30022

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 25STCV30022 Hearing Date: August 27, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

JONANTHAN MAURICE LEE ELBYE,

Plaintiff,

vs.

COUNTY OF LOS ANGELES (erroneously sued as

LOS ANGELES COUNTY SHERIFF'S DEPARTMENT, MARINA DEL REY SHERIFF'S STATION), et al.,

Defendants.

Case No.:

25STCV30022

Hearing Date:

August 27, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT COUNTY OF LOS ANGELES' MOTION FOR
JUDGMENT ON THE PLEADINGS

Background

On October 14, 2025, Plaintiff
Jonanathan Maurice Lee Elbye ("Plaintiff"), in pro per, filed this action
against Defendant the County of Los Angeles, by and through the Los Angeles
County Sheriff's Department (Marina del Rey Sheriff's Station) (the "County")
and its deputies due to their alleged actions during Plaintiff's psychiatric
emergency. The complaint alleges three causes of action for (1) negligence-
public entity (Gov. Code § 815.2), (2) negligence-
public employee (Gov. Code § 820), and (3) failure
to discharge a mandatory duty, Gov. Code § 815.6.

The County now moves for
judgment on the pleadings. Plaintiff opposes. The County replied.

On July 8, 2026, the Court
ordered the County's counsel to meet and confer with Plaintiff, and if the
parties could not resolve the issues raised in the motion, the County's counsel
was to file a declaration discussing the efforts. The Court notes that counsel
filed a declaration on July 31, 2026 attesting to the parties' verbal
discussion and inability to resolve the issues in the motion. Accordingly, the
County complied, and the Court will now hear the motion.

Request for Judicial
Notice

The Court grants the County's
request for judicial notice of Exhibit A.

Legal
Standard

"A [plaintiff]
may move for judgment on the pleadings" when "the
complaint states facts sufficient to constitute a cause or causes of action

against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subds. (b)(1) and (c)(1)(A).) “A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. [Citations.] Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999, citations omitted.)

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer: that under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. ((Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.)

The court “must accept as true all material facts properly pleaded, but does not consider conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed.” ((Stevenson Real Estate Services, Inc. v. CB Richard Ellis Real Estate Services, Inc. (2006) 138 Cal.App.4th 1215, 1219-1220.)

Discussion

A. Allegations of the Complaint

Plaintiff’s complaint arises from allegations that sheriff deputies’ “conduct fell below the standard of care when responding to an individual expressing suicidal intent,” because after calling the Mariana Del Rey Sheriff’s Station, he told the “deputies that he intended to commit suicide by ingesting prescription medications and household chemicals,” but the officers did not take action and left. (Compl., ¶¶ 11-19.) Thereafter, Plaintiff attempted suicide and “[a]t approximately 7:30 a.m., emergency medical responders from the Los Angeles Fire Department, accompanied by LASD deputies, returned to Plaintiff’s residence after the second 911 call. Plaintiff was placed in handcuffs and secured to a gurney and taken to Centinela Hospital Medical Center under a § 5150 police hold initiated by LASD.” (Compl., ¶¶ 13-15.)

B.

Failure to Timely File

The

County moves for judgment on the pleadings because Plaintiff failed to timely file the complaint. Plaintiff's complaint alleges he "complied with the California Government Claims Act (Gov. Code §§ 810-996.6) by presenting a written claim to the Los Angeles County Board of Supervisors on October 23, 2023, located at 500 West Temple Street, Room 383, Los Angeles, CA 90012, under Claim No. 23-4420434. The County failed to provide a written rejection within 45 days; therefore, the claim was deemed denied by operation of law on or about December 7, 2023, pursuant to Gov. Code § 945.6(a)(2). Because no written rejection was issued, Plaintiff had two years from the date of injury (October 11, 2023) to file suit, and this Complaint is timely filed within that statutory period." (Compl., ¶ 20.)

Pursuant

to Government Code section 945.6, subdivision (a)(1), a suit brought against a public entity must be commenced, "[i]f written notice is given in accordance with Section 913, not later than six months after the date such notice is personally delivered or deposited in the mail." "If written notice is not given in accordance with Section 913, within two years from the accrual of the cause of action. If the period within which the public entity is required to act is extended pursuant to subdivision (b) of Section 912.4, the period of such extension is not part of the time limited for the commencement of the action under this paragraph." (Gov. Code, § 945.6, subd. (a)(2).)

Under

Government Code section 912.4, subdivision (a), "[t]he board shall act on a claim in the manner provided in Section 912.6, 912.7, or 912.8 within 45 days after the claim has been presented." "If the board fails or refuses to act on a claim within [45 days], the claim shall be deemed to have been rejected by the board on the last day of the period within which the board was required to act upon the claim. If the period within which the board is required to act is extended by agreement pursuant to this section, the last day of the period within which the board is required to act shall be the last day of the period specified in the agreement." (Gov. Code, § 912.4, subd. (c).)

The

County asserts that "[o]n October 23, 2023, Plaintiff timely filed a claim with

the County of Los Angeles prior to bringing this action. On January 30, 2024, the County rejected the claim. The rejection letter specifically provides that the plaintiff has six months from the rejection date to file a lawsuit regarding the claim. See Exhibit A and RJN. Thus, plaintiff had six months from the rejection date to file a lawsuit. However, plaintiff did not file this lawsuit until December 26, 2025, almost two years after the rejection.” (Mot., 5:12-18.) The County’s request for judicial notice corroborates this assertion. (RJN, Ex. A.)

Plaintiff’s opposition contends that he never received the letter, and Plaintiff asserts that the County “asks the Court to treat a mailed letter as conclusive proof of a disputed fact, actual receipt, that the Complaint expressly denies. The Court may take judicial notice that the County mailed a letter on January 31, 2024. It may not take judicial notice, as an established fact, that Plaintiff received it.” (Opp., p. 5.) Plaintiff also provides a sworn declaration attesting that he never received the letter. However, on a motion for judgment on the pleadings, the Court only looks to the four corners of the complaint and judicially noticed matters. (See *Cloud v. Northrop Grumman Corp.*, supra, 67 Cal.App.4th at p. 999 [“Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.”].)

However, regardless of whether Plaintiff received the letter, his causes of action against the County are barred. First, if Plaintiff received the judicially noticed letter, Plaintiff would have had six months to file his lawsuit from January 30, 2024—July 30, 2024—but Plaintiff filed his complaint on October 14, 2025. Thus, the complaint is outside of the six-month timeframe. Second, if Plaintiff did not receive the letter, Plaintiff would have “two years from the accrual of the cause of action.” (Gov. Code, § 945.6, subd. (a)(2).) However, Plaintiff’s complaint alleges injury on October 11, 2023, and the complaint was filed on October 14, 2025, more than two years after the cause of action occurred. Accordingly, the Court need not determine whether Plaintiff’s alleged non-receipt of the letter occurred, because Plaintiff’s causes of action against the County are barred under either theory.

Additionally, the County moves for judgment on the pleadings because Plaintiff’s complaint is barred by the statute of limitations specific to Plaintiff’s allegations, because “[a]n action for assault, battery, or injury to, or for the death of, an individual caused by the wrongful act or neglect of another” must be brought

within two years. (Code Civ. Proc., §335.1.) Under this statute, Plaintiff's lawsuit is similarly time-barred.

Plaintiff's

opposition contends that "[b]oth the Government Claims Act's "deemed rejected" two-year period under § 945.6(a)(2) and the general two-year period under § 335.1 run from the same accrual date, October 11, 2023. The Complaint alleges it was filed within that period. (Complaint ¶ 20.) The County's two limitations theories therefore stand or fall together." (Opp., p. 5.)

Contrary

to what Plaintiff asserts, although the complaint alleges it is timely, it does not override the filing date stamped on and listed on the complaint itself. (See Code Civ. Proc., § 411.10 ["A civil action is commenced by filing a complaint with the court."].) Accordingly, Plaintiff's complaint was not filed within the requisite statute of limitations and is thus barred. Plaintiff seeks leave to amend, which should be granted liberally; however, Plaintiff cannot amend the complaint to overcome the statute of limitations issue, nor does Plaintiff demonstrate that this issue could be resolved on amendment.

Accordingly,

the motion for judgment on the pleadings is granted, without leave to amend.

Conclusion

Based on the foregoing, the County's motion for judgment on the pleadings is GRANTED, without leave to amend. The County is ordered to file a proposed form of judgment within 20 days of this Order.

The County is ordered to give notice of this Order.

DATED: August
27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court